COMMERCIAL AGREEMENT - RECORD 016

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-016

1. Recitals and defined terms

This Master Robotics-as-a-Service Agreement is made between Helioscope Robotics, Inc. as Provider and Pioneer Freight Terminals LP as Customer, a freight cross-dock business organised in Illinois, contracting through Pioneer Freight Terminals LP. Pioneer and the Provider have agreed that terms defined in the recitals and in Exhibit B carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Nothing in Exhibit D entitles Pioneer to assume that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. As it bites, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Illinois is where Pioneer runs freight cross-dock operations across 6 sites, and the Master Robotics-as-a-Service Agreement follows that footprint. The obligation as it applies to Pioneer was tightened at signature, and Article 13 (Licences) carries the negotiated wording rather than the standard wording.

Article 11 (Data and Telemetry) of the Master Robotics-as-a-Service Agreement is to be construed so that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. In application, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Pioneer runs 6 sites from Illinois in freight cross-dock, so the Master Robotics-as-a-Service Agreement is administered locally and this clause is applied per site. Administration of this obligation for Pioneer sits with the account team rather than with central contracts, and Article 15 (Limitation of Liability) is where it is evidenced.

Where Article 10 (Change Control) applies, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In terms of consequence, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. For Pioneer, a freight cross-dock operator running 6 sites out of Illinois, the point matters because the Master Robotics-as-a-Service Agreement is administered site by site. The Pioneer relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

Nothing in Schedule 3 entitles Pioneer to assume that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In point of remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Running 6 sites in freight cross-dock, Pioneer takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. For a customer of Pioneer's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

Pioneer RaaS agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Pioneer milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
PIO-M001	network readiness certified	2025-05	6	labour agreement	$71,001	invoiceable on certification
PIO-M002	warranty commencement	2024-06	14	seasonal freeze	$154,728	invoiceable on acceptance
PIO-M003	network readiness certified	2026-11	23	Customer IT dependency	$36,061	no payment attached
PIO-M004	network readiness certified	2025-02	29	seasonal freeze	$130,493	invoiceable on certification
PIO-M005	network readiness certified	2024-01	12	facility readiness	$239,694	no payment attached
PIO-M006	network readiness certified	2024-09	13	facility readiness	$124,964	invoiceable on certification
PIO-M007	steady-state handover	2025-01	15	seasonal freeze	$155,064	no payment attached
PIO-M008	integration test passed	2026-08	16	seasonal freeze	$115,739	invoiceable on certification

Pioneer milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
PIO-M009	steady-state handover	2025-02	3	seasonal freeze	$140,671	invoiceable on acceptance
PIO-M010	pilot acceptance	2026-08	24	Customer IT dependency	$95,675	invoiceable on certification
PIO-M011	site survey complete	2026-05	21	facility readiness	$55,438	invoiceable on certification
PIO-M012	steady-state handover	2026-04	23	network provisioning	$266,829	invoiceable on certification
PIO-M013	pilot acceptance	2024-11	3	no delay	$39,419	invoiceable on certification
PIO-M014	integration test passed	2026-02	16	Customer IT dependency	$192,813	no payment attached
PIO-M015	warranty commencement	2026-11	11	Customer IT dependency	$264,449	invoiceable on certification
PIO-M016	full acceptance	2026-09	5	seasonal freeze	$255,901	no payment attached
PIO-M017	site survey complete	2024-10	14	seasonal freeze	$235,160	no payment attached
PIO-M018	integration test passed	2025-06	17	network provisioning	$41,810	invoiceable on certification
PIO-M019	warranty commencement	2026-07	30	seasonal freeze	$267,414	invoiceable on acceptance
PIO-M020	network readiness certified	2025-02	26	facility readiness	$74,153	invoiceable on certification
PIO-M021	pilot acceptance	2024-12	23	seasonal freeze	$207,004	invoiceable on acceptance
PIO-M022	integration test passed	2024-02	20	Customer IT dependency	$68,348	invoiceable on certification
PIO-M023	network readiness certified	2024-01	2	Customer IT dependency	$121,981	invoiceable on acceptance
PIO-M024	warranty commencement	2026-06	11	facility readiness	$176,214	invoiceable on acceptance
PIO-M025	pilot acceptance	2026-05	1	Customer IT dependency	$63,079	invoiceable on acceptance
PIO-M026	network readiness certified	2025-10	25	no delay	$167,808	invoiceable on certification
PIO-M027	pilot acceptance	2026-01	25	seasonal freeze	$108,094	invoiceable on certification
PIO-M028	pilot acceptance	2024-12	16	labour agreement	$246,153	no payment attached
PIO-M029	site survey complete	2026-07	32	Customer IT dependency	$213,952	invoiceable on certification
PIO-M030	warranty commencement	2026-03	30	seasonal freeze	$78,491	invoiceable on certification
PIO-M031	network readiness certified	2025-01	13	seasonal freeze	$68,657	invoiceable on certification
PIO-M032	units delivered	2025-07	5	seasonal freeze	$44,709	invoiceable on certification
PIO-M033	site survey complete	2026-03	8	facility readiness	$42,155	invoiceable on acceptance
PIO-M034	network readiness certified	2024-08	23	network provisioning	$260,725	invoiceable on acceptance
PIO-M035	full acceptance	2025-03	on plan	facility readiness	$267,797	no payment attached
PIO-M036	site survey complete	2025-03	33	labour agreement	$66,349	no payment attached
PIO-M037	units delivered	2024-06	32	facility readiness	$110,058	no payment attached
PIO-M038	full acceptance	2026-12	on plan	network provisioning	$218,559	invoiceable on acceptance
PIO-M039	network readiness certified	2026-12	12	network provisioning	$26,440	no payment attached
PIO-M040	network readiness certified	2026-12	6	Customer IT dependency	$55,011	invoiceable on acceptance
PIO-M041	network readiness certified	2024-03	31	seasonal freeze	$170,868	invoiceable on acceptance
PIO-M042	warranty commencement	2025-12	31	Customer IT dependency	$197,217	no payment attached

Pioneer milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
PIO-M043	pilot acceptance	2026-06	10	facility readiness	$96,291	invoiceable on certification
PIO-M044	units delivered	2026-08	31	network provisioning	$15,720	invoiceable on certification
PIO-M045	pilot acceptance	2025-08	9	facility readiness	$162,685	invoiceable on acceptance
PIO-M046	integration test passed	2026-10	9	labour agreement	$203,301	invoiceable on certification
PIO-M047	integration test passed	2024-05	6	network provisioning	$203,033	invoiceable on acceptance
PIO-M048	integration test passed	2024-03	33	no delay	$123,013	no payment attached
PIO-M049	units delivered	2026-11	2	no delay	$242,514	no payment attached
PIO-M050	full acceptance	2024-01	2	network provisioning	$158,995	invoiceable on certification
PIO-M051	warranty commencement	2025-07	4	network provisioning	$225,336	invoiceable on acceptance
PIO-M052	site survey complete	2024-04	17	labour agreement	$138,311	invoiceable on certification
PIO-M053	full acceptance	2025-04	31	facility readiness	$217,410	invoiceable on certification
PIO-M054	integration test passed	2024-04	1	Customer IT dependency	$100,791	invoiceable on certification
PIO-M055	units delivered	2026-11	7	no delay	$103,696	no payment attached
PIO-M056	network readiness certified	2024-02	16	Customer IT dependency	$84,913	no payment attached
PIO-M057	integration test passed	2026-04	13	labour agreement	$59,913	invoiceable on certification
PIO-M058	steady-state handover	2024-04	on plan	seasonal freeze	$263,748	invoiceable on acceptance
PIO-M059	warranty commencement	2024-06	22	no delay	$101,008	invoiceable on acceptance
PIO-M060	full acceptance	2026-07	1	Customer IT dependency	$58,009	invoiceable on acceptance
PIO-M061	site survey complete	2024-02	19	labour agreement	$140,753	invoiceable on certification
PIO-M062	integration test passed	2024-04	22	labour agreement	$152,488	invoiceable on acceptance
PIO-M063	full acceptance	2026-05	on plan	labour agreement	$16,878	invoiceable on certification
PIO-M064	warranty commencement	2024-03	33	seasonal freeze	$100,700	invoiceable on certification
PIO-M065	integration test passed	2026-10	7	seasonal freeze	$37,242	invoiceable on certification
PIO-M066	warranty commencement	2025-12	17	no delay	$33,689	no payment attached
PIO-M067	site survey complete	2026-05	6	seasonal freeze	$91,196	no payment attached
PIO-M068	full acceptance	2025-12	26	facility readiness	$163,542	no payment attached
PIO-M069	warranty commencement	2026-02	32	facility readiness	$269,317	invoiceable on acceptance
PIO-M070	warranty commencement	2025-04	19	Customer IT dependency	$264,311	no payment attached
PIO-M071	integration test passed	2024-09	23	no delay	$270,351	invoiceable on acceptance
PIO-M072	warranty commencement	2026-12	19	Customer IT dependency	$87,623	no payment attached
PIO-M073	network readiness certified	2025-08	4	network provisioning	$117,335	no payment attached
PIO-M074	full acceptance	2026-07	33	network provisioning	$182,826	invoiceable on certification
PIO-M075	network readiness certified	2026-05	27	network provisioning	$183,083	no payment attached
PIO-M076	steady-state handover	2024-12	30	network provisioning	$232,211	invoiceable on acceptance

Pioneer milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
PIO-M077	site survey complete	2026-05	21	labour agreement	$73,486	invoiceable on acceptance
PIO-M078	units delivered	2024-08	13	no delay	$50,497	invoiceable on acceptance
PIO-M079	steady-state handover	2024-02	6	network provisioning	$164,069	invoiceable on acceptance
PIO-M080	full acceptance	2024-12	25	facility readiness	$201,400	invoiceable on certification
PIO-M081	warranty commencement	2026-03	22	facility readiness	$41,409	invoiceable on acceptance
PIO-M082	full acceptance	2026-11	11	no delay	$102,989	invoiceable on certification
PIO-M083	warranty commencement	2025-08	3	facility readiness	$152,612	invoiceable on acceptance
PIO-M084	site survey complete	2026-05	2	no delay	$170,823	invoiceable on acceptance
PIO-M085	steady-state handover	2024-02	21	Customer IT dependency	$79,316	invoiceable on certification
PIO-M086	network readiness certified	2024-03	27	labour agreement	$159,176	invoiceable on certification

2. Scope of supply and orders

The parties have recorded in Exhibit D that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In effect, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. For Pioneer, a freight cross-dock operator running 6 sites out of Illinois, the point matters because the Master Robotics-as-a-Service Agreement is administered site by site. For a customer of Pioneer's size the clause is unremarkable, but Article 19 (Confidentiality) is drafted more tightly here than in the Provider's standard form.

Pioneer bears the risk that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In substance, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. The obligation as it applies to Pioneer was tightened at signature, and Article 12 (Intellectual Property) carries the negotiated wording rather than the standard wording.

Pioneer acknowledges that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As a matter of construction, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Running 6 sites in freight cross-dock, Pioneer takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Administration of this obligation for Pioneer sits with the account team rather than with central contracts, and Article 20 (Notices) is where it is evidenced.

Pioneer has agreed, and the Provider has accepted, that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. On the face of the clause, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 6 sites in freight cross-dock, Pioneer takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Because Pioneer operates in freight cross-dock, the practical burden of this clause falls on its Illinois operation, and Article 6 (Fees and Payment) governs how it is measured.

3. Delivery, title and risk

Subject to Article 7 (Service Levels), each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On any reading, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 6 sites in Illinois means Pioneer applies the Master Robotics-as-a-Service Agreement through its regional

operations team rather than through head office. The Pioneer relationship is managed against Article 13 (Licences) at each quarterly review, and any variance is minuted there rather than in the Order.

Pioneer retains the right, notwithstanding Article 2 (Definitions), to require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. As a matter of construction, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Because Pioneer is a Illinois freight cross-dock business with 6 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. Notices under Article 6 (Fees and Payment) go to the contracting entity named in the recital and not to any Pioneer affiliate that may operate a site.

On a proper construction of Exhibit B, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As between them, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Administration of this obligation for Pioneer sits with the account team rather than with central contracts, and Article 13 (Licences) is where it is evidenced.

Pioneer pays the fees under Exhibit C in consideration of the Provider's undertaking that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Strictly, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Pioneer's 6 sites, since a freight cross-dock operator administers the Master Robotics-as-a-Service Agreement where the units work. Administration of this obligation for Pioneer sits with the account team rather than with central contracts, and Article 15 (Limitation of Liability) is where it is evidenced.

Pioneer RaaS agreement - Exhibit C - Service Levels and Credit Ladder

Pioneer service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
PIO-L001	response time	97.6%	6% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
PIO-L002	response time	90.7%	10% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit only
PIO-L003	availability	93.0%	2% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit only
PIO-L004	response time	95.3%	5% of monthly fee	17% of monthly fee	no exclusion	credit only
PIO-L005	throughput	97.9%	6% of monthly fee	21% of monthly fee	excluding force majeure	credit only
PIO-L006	throughput	94.7%	2% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
PIO-L007	availability	91.7%	1% of monthly fee	26% of monthly fee	excluding scheduled maintenance	credit only
PIO-L008	throughput	94.1%	9% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L009	availability	95.0%	3% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit only
PIO-L010	resolution time	97.8%	1% of monthly fee	26% of monthly fee	no exclusion	credit only
PIO-L011	throughput	95.3%	8% of monthly fee	24% of monthly fee	excluding force majeure	credit then termination right
PIO-L012	availability	94.0%	2% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L013	response time	96.3%	3% of monthly fee	10% of monthly fee	excluding force majeure	credit then termination right
PIO-L014	resolution time	93.4%	2% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit only
PIO-L015	resolution time	94.1%	12% of monthly	10% of monthly	excluding	credit then

Pioneer service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	Customer-caused outage	termination right
PIO-L016	response time	93.4%	6% of monthly fee	8% of monthly fee	no exclusion	credit only
PIO-L017	availability	97.3%	3% of monthly fee	13% of monthly fee	no exclusion	credit only
PIO-L018	throughput	90.8%	10% of monthly fee	5% of monthly fee	excluding force majeure	credit then termination right
PIO-L019	resolution time	91.6%	3% of monthly fee	21% of monthly fee	no exclusion	credit then termination right
PIO-L020	throughput	93.9%	6% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit only
PIO-L021	availability	98.5%	1% of monthly fee	14% of monthly fee	excluding force majeure	credit then termination right
PIO-L022	throughput	95.2%	7% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L023	availability	94.7%	4% of monthly fee	29% of monthly fee	excluding scheduled maintenance	credit only
PIO-L024	response time	93.9%	1% of monthly fee	27% of monthly fee	excluding force majeure	credit only
PIO-L025	availability	93.3%	2% of monthly fee	12% of monthly fee	no exclusion	credit then termination right
PIO-L026	availability	91.1%	1% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
PIO-L027	availability	92.5%	12% of monthly fee	17% of monthly fee	excluding force majeure	credit only
PIO-L028	resolution time	96.7%	9% of monthly fee	18% of monthly fee	excluding force majeure	credit then termination right
PIO-L029	throughput	93.0%	6% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit only
PIO-L030	response time	96.9%	11% of monthly fee	11% of monthly fee	excluding force majeure	credit only
PIO-L031	resolution time	90.0%	9% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
PIO-L032	availability	97.8%	3% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit only
PIO-L033	response time	92.0%	9% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit only
PIO-L034	availability	91.1%	11% of monthly fee	11% of monthly fee	excluding force majeure	credit only
PIO-L035	response time	90.5%	1% of monthly fee	8% of monthly fee	no exclusion	credit only
PIO-L036	resolution time	90.6%	4% of monthly fee	24% of monthly fee	excluding force majeure	credit only
PIO-L037	availability	98.4%	5% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit only
PIO-L038	throughput	90.8%	2% of monthly fee	23% of monthly fee	excluding Customer-caused outage	credit only
PIO-L039	resolution time	94.7%	9% of monthly fee	23% of monthly fee	no exclusion	credit then termination right
PIO-L040	throughput	94.2%	1% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L041	resolution time	92.0%	10% of monthly fee	22% of monthly fee	no exclusion	credit only
PIO-L042	availability	94.6%	2% of monthly fee	28% of monthly fee	no exclusion	credit only
PIO-L043	availability	96.7%	6% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit then termination right

Pioneer service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
PIO-L044	availability	98.2%	9% of monthly fee	20% of monthly fee	excluding scheduled maintenance	credit only
PIO-L045	resolution time	93.4%	12% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L046	throughput	93.9%	1% of monthly fee	10% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L047	resolution time	93.9%	10% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L048	resolution time	98.9%	3% of monthly fee	14% of monthly fee	no exclusion	credit then termination right
PIO-L049	availability	98.8%	11% of monthly fee	13% of monthly fee	excluding Customer-caused outage	credit only
PIO-L050	availability	96.0%	2% of monthly fee	29% of monthly fee	excluding force majeure	credit only
PIO-L051	availability	97.5%	6% of monthly fee	19% of monthly fee	excluding force majeure	credit only
PIO-L052	resolution time	94.6%	5% of monthly fee	19% of monthly fee	no exclusion	credit then termination right
PIO-L053	response time	90.8%	2% of monthly fee	25% of monthly fee	excluding force majeure	credit only
PIO-L054	availability	91.2%	11% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L055	throughput	90.2%	8% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L056	response time	97.5%	5% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L057	availability	90.6%	9% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
PIO-L058	throughput	95.0%	6% of monthly fee	8% of monthly fee	no exclusion	credit then termination right
PIO-L059	response time	93.1%	9% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L060	response time	92.6%	11% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit only
PIO-L061	resolution time	92.8%	9% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
PIO-L062	response time	98.2%	3% of monthly fee	23% of monthly fee	excluding force majeure	credit only
PIO-L063	response time	97.5%	8% of monthly fee	13% of monthly fee	excluding Customer-caused outage	credit only
PIO-L064	resolution time	93.3%	6% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit only
PIO-L065	resolution time	94.3%	5% of monthly fee	20% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L066	response time	91.9%	5% of monthly fee	20% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L067	availability	94.5%	6% of monthly fee	23% of monthly fee	excluding force majeure	credit only
PIO-L068	throughput	92.3%	11% of monthly fee	11% of monthly fee	excluding force majeure	credit then termination right
PIO-L069	throughput	90.0%	6% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit only

Pioneer service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
PIO-L070	availability	98.5%	12% of monthly fee	19% of monthly fee	excluding scheduled maintenance	credit only
PIO-L071	resolution time	93.2%	3% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L072	availability	95.2%	6% of monthly fee	28% of monthly fee	excluding force majeure	credit only
PIO-L073	availability	94.8%	10% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit then termination right
PIO-L074	resolution time	97.3%	1% of monthly fee	28% of monthly fee	excluding force majeure	credit only
PIO-L075	availability	96.4%	4% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
PIO-L076	throughput	97.6%	1% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit then termination right
PIO-L077	throughput	91.0%	6% of monthly fee	11% of monthly fee	no exclusion	credit then termination right
PIO-L078	resolution time	97.4%	6% of monthly fee	13% of monthly fee	excluding force majeure	credit then termination right
PIO-L079	resolution time	92.9%	11% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit only
PIO-L080	availability	92.9%	2% of monthly fee	12% of monthly fee	excluding force majeure	credit then termination right

4. Fees, invoicing and escalation

On a proper construction of Schedule 2, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As to enforcement, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Because Pioneer is a Illinois freight cross-dock business with 6 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. Notices under Article 7 (Service Levels) go to the contracting entity named in the recital and not to any Pioneer affiliate that may operate a site.

The Provider has undertaken to Pioneer that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On timing, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Pioneer treats the obligation as a site-level matter across its 6 sites in Illinois, consistent with the Master Robotics-as-a-Service Agreement. For a customer of Pioneer's size the clause is unremarkable, but Article 5 (Delivery and Title) is drafted more tightly here than in the Provider's standard form.

Nothing in Exhibit D entitles Pioneer to assume that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On the wording, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Pioneer has taken the point up once since signature; the correspondence is filed against Article 21 (Governing Law and Disputes) and did not result in an amendment.

Article 18 (Assignment) provides that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Procedurally, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Because Pioneer is a Illinois freight cross-dock business with 6 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. Pioneer has taken the point up once since signature; the correspondence is filed against Article 10 (Change Control) and did not result in an amendment.

5. Service levels and credits

Nothing in Exhibit C entitles Pioneer to assume that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As a matter of construction, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Pioneer runs 6 sites from Illinois in freight cross-dock, so the Master Robotics-as-a-Service Agreement is administered locally and this clause is applied per site. Because Pioneer operates in freight cross-dock, the practical burden of this clause falls on its Illinois operation, and Article 2 (Definitions) governs how it is measured.

Neither Pioneer nor the Provider may treat Article 19 (Confidentiality) as permitting the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On timing, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Pioneer has 6 sites, and the Master Robotics-as-a-Service Agreement treats each as a separate delivery point. Notices under Article 19 (Confidentiality) go to the contracting entity named in the recital and not to any Pioneer affiliate that may operate a site.

Pioneer and the Provider agree that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Negotiated position: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 6 sites in freight cross-dock, Pioneer takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Nothing in the Pioneer negotiation history qualifies Article 7 (Service Levels), and a reviewer should not read the pre-signature drafts as doing so.

Pioneer acknowledges that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On the negotiated text, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Notices under Article 16 (Term and Termination) go to the contracting entity named in the recital and not to any Pioneer affiliate that may operate a site.

6. Acceptance and change control

On the terms of Schedule 5, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As a matter of construction, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Illinois is where Pioneer runs freight cross-dock operations across 6 sites, and the Master Robotics-as-a-Service Agreement follows that footprint. Where Pioneer has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

Nothing in Exhibit A entitles Pioneer to assume that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As a remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Master Robotics-as-a-Service Agreement reaches each of Pioneer's 6 sites separately, which is how a freight cross-dock operator in Illinois administers it. The Pioneer file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

Article 15 (Limitation of Liability) provides that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. In effect, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Nothing in the Pioneer negotiation history qualifies Article 5 (Delivery and Title), and a reviewer should not read the pre-signature drafts as doing so.

Article 20 (Notices) provides that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As agreed, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Running 6

sites in freight cross-dock, Pioneer takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. The Pioneer file records the position as at the last amendment, and Article 19 (Confidentiality) is the reference a reviewer should cite when raising it.

Pioneer RaaS agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Pioneer price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
PIO-P0001	part 1143-Z	controller board	$2,253	5	400	dual sourced	last-time-buy notice 12 months
PIO-P0002	part 1035-B	controller board	$1,236	5	300	single source	no EOL commitment
PIO-P0003	part 9283-Z	optical sensor	$1,030	9	200	qualification in progress	last-time-buy notice 12 months
PIO-P0004	part 4771-O	gearbox	$1,610	21	200	single source	last-time-buy notice 12 months
PIO-P0005	part 2288-J	encoder	$338	25	150	single source	EOL notice 6 months
PIO-P0006	part 6245-V	optical sensor	$1,935	13	350	qualification in progress	no EOL commitment
PIO-P0007	part 6293-J	castor assembly	$353	10	500	dual sourced	last-time-buy notice 12 months
PIO-P0008	part 6144-H	encoder	$1,039	9	350	single source	no EOL commitment
PIO-P0009	part 8267-G	harness	$530	20	200	dual sourced	last-time-buy notice 12 months
PIO-P0010	part 4646-G	gearbox	$1,950	13	200	dual sourced	no EOL commitment
PIO-P0011	part 9401-Y	castor assembly	$69	7	500	dual sourced	EOL notice 6 months
PIO-P0012	part 9204-A	battery module	$1,829	8	150	qualification in progress	last-time-buy notice 12 months
PIO-P0013	part 2807-C	castor assembly	$337	18	250	dual sourced	no EOL commitment
PIO-P0014	part 4783-W	battery module	$1,687	10	500	single source	no EOL commitment
PIO-P0015	part 6527-F	drive unit	$2,179	5	400	dual sourced	last-time-buy notice 12 months
PIO-P0016	part 3334-O	optical sensor	$1,168	22	50	single source	EOL notice 6 months
PIO-P0017	part 3367-T	harness	$1,662	18	200	qualification in progress	no EOL commitment
PIO-P0018	part 8363-I	encoder	$2,012	21	450	single source	last-time-buy notice 12 months
PIO-P0019	part 3979-A	drive unit	$2,137	4	400	single source	EOL notice 6 months
PIO-P0020	part 2485-Y	harness	$871	9	550	qualification in progress	no EOL commitment
PIO-P0021	part 3388-I	castor assembly	$2,353	24	250	single source	last-time-buy notice 12 months
PIO-P0022	part 4367-L	controller board	$1,428	20	450	qualification in progress	last-time-buy notice 12 months
PIO-P0023	part 9852-L	drive unit	$2,202	6	400	dual sourced	no EOL commitment
PIO-P0024	part 8386-G	castor assembly	$2,412	14	450	single source	no EOL commitment
PIO-P0025	part 6238-A	castor assembly	$1,275	11	400	single source	no EOL commitment
PIO-P0026	part 8186-O	encoder	$2,301	5	600	single source	EOL notice 6 months
PIO-P0027	part 7970-F	encoder	$968	12	50	dual sourced	no EOL

Pioneer price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							commitment
PIO-P0028	part 4771-S	harness	$448	10	350	dual sourced	last-time-buy notice 12 months
PIO-P0029	part 6386-Q	harness	$996	12	100	single source	no EOL commitment
PIO-P0030	part 7282-X	harness	$164	14	250	single source	EOL notice 6 months
PIO-P0031	part 9872-O	optical sensor	$743	23	450	dual sourced	no EOL commitment
PIO-P0032	part 7710-A	optical sensor	$286	24	100	single source	EOL notice 6 months
PIO-P0033	part 6448-M	encoder	$1,444	19	300	qualification in progress	no EOL commitment
PIO-P0034	part 3913-L	harness	$1,486	21	500	single source	EOL notice 6 months
PIO-P0035	part 7779-F	encoder	$980	19	250	qualification in progress	EOL notice 6 months
PIO-P0036	part 7004-U	optical sensor	$509	12	550	qualification in progress	last-time-buy notice 12 months
PIO-P0037	part 4154-N	drive unit	$1,517	19	450	dual sourced	last-time-buy notice 12 months
PIO-P0038	part 5539-A	controller board	$1,598	19	500	dual sourced	last-time-buy notice 12 months
PIO-P0039	part 2569-C	castor assembly	$948	8	450	qualification in progress	EOL notice 6 months
PIO-P0040	part 5603-H	optical sensor	$2,283	8	300	qualification in progress	no EOL commitment
PIO-P0041	part 9367-M	optical sensor	$2,177	7	600	single source	no EOL commitment
PIO-P0042	part 7204-N	castor assembly	$188	6	450	qualification in progress	last-time-buy notice 12 months
PIO-P0043	part 4697-K	optical sensor	$1,949	20	200	qualification in progress	EOL notice 6 months
PIO-P0044	part 7432-U	castor assembly	$710	18	100	single source	EOL notice 6 months
PIO-P0045	part 7755-P	harness	$493	5	250	single source	EOL notice 6 months
PIO-P0046	part 4631-G	controller board	$1,978	17	500	single source	EOL notice 6 months
PIO-P0047	part 7611-T	battery module	$2,050	5	200	dual sourced	last-time-buy notice 12 months
PIO-P0048	part 8038-R	harness	$1,884	23	600	qualification in progress	no EOL commitment
PIO-P0049	part 4968-B	drive unit	$48	24	250	dual sourced	no EOL commitment
PIO-P0050	part 4990-P	optical sensor	$1,221	11	600	qualification in progress	last-time-buy notice 12 months
PIO-P0051	part 5154-R	encoder	$963	20	500	single source	last-time-buy notice 12 months
PIO-P0052	part 6224-H	harness	$1,764	5	300	dual sourced	EOL notice 6 months
PIO-P0053	part 3434-M	controller board	$64	10	250	single source	no EOL commitment
PIO-P0054	part 1196-F	encoder	$1,285	7	150	dual sourced	no EOL commitment
PIO-P0055	part 6097-Q	optical sensor	$2,288	5	500	qualification in progress	EOL notice 6 months
PIO-P0056	part 6521-A	gearbox	$1,152	25	200	single source	no EOL commitment
PIO-P0057	part 4537-G	battery module	$976	13	350	single source	last-time-buy notice 12

Pioneer price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
PIO-P0058	part 6569-C	optical sensor	$790	22	400	qualification in progress	no EOL commitment
PIO-P0059	part 5198-X	harness	$2,103	7	300	dual sourced	last-time-buy notice 12 months
PIO-P0060	part 3338-M	drive unit	$1,061	8	500	qualification in progress	no EOL commitment
PIO-P0061	part 8371-H	drive unit	$1,348	18	200	dual sourced	no EOL commitment
PIO-P0062	part 9874-N	drive unit	$736	13	600	dual sourced	last-time-buy notice 12 months
PIO-P0063	part 2333-S	harness	$1,688	8	350	dual sourced	EOL notice 6 months
PIO-P0064	part 4371-B	optical sensor	$2,202	17	250	single source	last-time-buy notice 12 months
PIO-P0065	part 8709-F	encoder	$1,106	22	550	dual sourced	EOL notice 6 months
PIO-P0066	part 4218-U	battery module	$2,286	5	200	single source	EOL notice 6 months
PIO-P0067	part 1368-M	harness	$903	17	250	dual sourced	EOL notice 6 months
PIO-P0068	part 1812-S	encoder	$971	10	500	qualification in progress	EOL notice 6 months
PIO-P0069	part 2242-T	encoder	$1,772	19	400	dual sourced	last-time-buy notice 12 months
PIO-P0070	part 9701-J	controller board	$159	22	300	single source	last-time-buy notice 12 months
PIO-P0071	part 6524-X	harness	$566	6	400	qualification in progress	EOL notice 6 months
PIO-P0072	part 3499-F	battery module	$973	17	150	single source	EOL notice 6 months
PIO-P0073	part 7129-L	harness	$2,367	24	300	qualification in progress	EOL notice 6 months
PIO-P0074	part 5077-D	harness	$1,977	5	150	dual sourced	last-time-buy notice 12 months
PIO-P0075	part 3446-O	castor assembly	$2,007	13	200	qualification in progress	EOL notice 6 months
PIO-P0076	part 1539-O	encoder	$1,858	10	50	qualification in progress	last-time-buy notice 12 months
PIO-P0077	part 3360-M	castor assembly	$1,037	6	200	qualification in progress	EOL notice 6 months
PIO-P0078	part 6438-W	gearbox	$2,110	15	50	dual sourced	EOL notice 6 months
PIO-P0079	part 2951-B	controller board	$1,798	22	150	qualification in progress	no EOL commitment
PIO-P0080	part 7836-Y	castor assembly	$572	6	50	dual sourced	EOL notice 6 months
PIO-P0081	part 8466-E	castor assembly	$499	18	500	single source	EOL notice 6 months
PIO-P0082	part 5023-Z	battery module	$221	21	550	qualification in progress	EOL notice 6 months
PIO-P0083	part 8080-H	battery module	$542	11	450	qualification in progress	last-time-buy notice 12 months
PIO-P0084	part 1503-B	castor assembly	$2,433	19	350	dual sourced	no EOL commitment
PIO-P0085	part 6979-V	controller board	$1,535	20	350	qualification in progress	no EOL commitment
PIO-P0086	part 5318-K	drive unit	$1,306	12	550	qualification in progress	EOL notice 6 months
PIO-P0087	part 6810-L	castor assembly	$1,180	22	50	single source	last-time-buy notice 12

Pioneer price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
PIO-P0088	part 6806-D	battery module	$1,959	16	350	dual sourced	EOL notice 6 months
PIO-P0089	part 6153-D	optical sensor	$1,897	8	550	single source	last-time-buy notice 12 months
PIO-P0090	part 8898-Z	encoder	$2,070	20	300	dual sourced	EOL notice 6 months
PIO-P0091	part 4881-N	optical sensor	$1,699	7	350	dual sourced	no EOL commitment
PIO-P0092	part 6411-O	battery module	$1,051	22	100	single source	last-time-buy notice 12 months

7. Data, intellectual property and licences

The Provider warrants to Pioneer that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Pioneer treats the obligation as a site-level matter across its 6 sites in Illinois, consistent with the Master Robotics-as-a-Service Agreement. Because Pioneer operates in freight cross-dock, the practical burden of this clause falls on its Illinois operation, and Article 20 (Notices) governs how it is measured.

Where Article 2 (Definitions) applies, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In point of remedy, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. The Pioneer relationship is managed against Article 4 (Orders and Quantities) at each quarterly review, and any variance is minuted there rather than in the Order.

For the purposes of the Master Robotics-as-a-Service Agreement, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Pioneer treats the obligation as a site-level matter across its 6 sites in Illinois, consistent with the Master Robotics-as-a-Service Agreement. Administration of this obligation for Pioneer sits with the account team rather than with central contracts, and Article 16 (Term and Termination) is where it is evidenced.

The Provider has undertaken to Pioneer that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Tighter here than standard: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Illinois is where Pioneer runs freight cross-dock operations across 6 sites, and the Master Robotics-as-a-Service Agreement follows that footprint. The Pioneer file records the position as at the last amendment, and Article 20 (Notices) is the reference a reviewer should cite when raising it.

8. Indemnities and limitation of liability

Pioneer Freight Terminals LP has notified the Provider that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Textually, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 6 sites in Illinois means Pioneer applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Notices under Article 15 (Limitation of Liability) go to the contracting entity named in the recital and not to any Pioneer affiliate that may operate a site.

On the terms of Schedule 3, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Procedurally, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service

Agreement. For a customer of Pioneer's size the clause is unremarkable, but Article 14 (Indemnities) is drafted more tightly here than in the Provider's standard form.

As between Pioneer and the Provider, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. By way of qualification, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Pioneer runs 6 sites from Illinois in freight cross-dock, so the Master Robotics-as-a-Service Agreement is administered locally and this clause is applied per site. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Pioneer affiliate that may operate a site.

On a proper construction of Schedule 3, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Deliberately so: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Pioneer's 6 sites, since a freight cross-dock operator administers the Master Robotics-as-a-Service Agreement where the units work. The obligation as it applies to Pioneer was tightened at signature, and Article 14 (Indemnities) carries the negotiated wording rather than the standard wording.

Pioneer RaaS agreement - Schedule 5 - Notices, Periods and Addressees

Pioneer notice type	Subject	Period	Addressee	Method	Deemed given
PIO-N001	breach	75 days	Chief Operating Officer	courier only	on despatch
PIO-N002	breach	15 days	designated account executive	portal notice	on the second business day after despatch
PIO-N003	force majeure	10 days	designated account executive	courier only	on the second business day after despatch
PIO-N004	change of control	30 days	General Counsel	portal notice	on the second business day after despatch
PIO-N005	force majeure	70 days	General Counsel	courier and email	on receipt
PIO-N006	service credit claim	65 days	Contracts Manager	email with acknowledgement	on despatch
PIO-N007	renewal election	45 days	Contracts Manager	email with acknowledgement	on despatch
PIO-N008	renewal election	85 days	General Counsel	courier only	on despatch
PIO-N009	assignment request	25 days	General Counsel	portal notice	on the second business day after despatch
PIO-N010	price adjustment	80 days	Chief Operating Officer	portal notice	on the second business day after despatch
PIO-N011	non-renewal	90 days	General Counsel	portal notice	on despatch
PIO-N012	non-renewal	30 days	Contracts Manager	courier and email	on the second business day after despatch
PIO-N013	assignment request	80 days	designated account executive	courier and email	on receipt
PIO-N014	price adjustment	10 days	designated account executive	courier only	on receipt
PIO-N015	non-renewal	85 days	Chief Operating Officer	portal notice	on despatch
PIO-N016	service credit claim	35 days	Chief Operating Officer	portal notice	on receipt
PIO-N017	service credit claim	10 days	designated account executive	courier only	on receipt
PIO-N018	force majeure	85 days	designated account executive	portal notice	on despatch
PIO-N019	change of control	60 days	Chief Operating Officer	courier and email	on receipt
PIO-N020	renewal election	25 days	General Counsel	portal notice	on receipt
PIO-N021	non-renewal	65 days	Chief Operating Officer	courier and email	on despatch
PIO-N022	breach	65 days	Chief Operating Officer	courier only	on receipt
PIO-N023	breach	5 days	designated account	courier and email	on receipt

Pioneer notice type	Subject	Period	Addressee	Method	Deemed given
			executive		
PIO-N024	termination for cause	30 days	General Counsel	email with acknowledgement	on receipt
PIO-N025	change of control	25 days	designated account executive	courier and email	on receipt
PIO-N026	renewal election	75 days	General Counsel	courier and email	on despatch
PIO-N027	assignment request	5 days	Chief Operating Officer	email with acknowledgement	on despatch
PIO-N028	change of control	45 days	Contracts Manager	portal notice	on receipt
PIO-N029	price adjustment	55 days	Chief Operating Officer	courier and email	on despatch
PIO-N030	termination for cause	80 days	Chief Operating Officer	portal notice	on despatch
PIO-N031	non-renewal	40 days	designated account executive	courier and email	on receipt
PIO-N032	renewal election	80 days	General Counsel	courier only	on despatch
PIO-N033	renewal election	45 days	General Counsel	courier and email	on despatch
PIO-N034	price adjustment	80 days	Contracts Manager	portal notice	on despatch
PIO-N035	breach	30 days	Contracts Manager	courier only	on receipt
PIO-N036	force majeure	20 days	Contracts Manager	courier only	on the second business day after despatch
PIO-N037	termination for cause	10 days	General Counsel	email with acknowledgement	on despatch
PIO-N038	force majeure	10 days	designated account executive	courier and email	on despatch
PIO-N039	breach	45 days	Contracts Manager	email with acknowledgement	on despatch
PIO-N040	breach	50 days	Chief Operating Officer	email with acknowledgement	on despatch
PIO-N041	renewal election	20 days	Chief Operating Officer	courier and email	on receipt
PIO-N042	non-renewal	75 days	Chief Operating Officer	portal notice	on the second business day after despatch
PIO-N043	non-renewal	85 days	designated account executive	portal notice	on receipt
PIO-N044	change of control	5 days	General Counsel	portal notice	on receipt
PIO-N045	change of control	60 days	General Counsel	email with acknowledgement	on despatch
PIO-N046	non-renewal	20 days	Contracts Manager	courier only	on receipt
PIO-N047	service credit claim	60 days	designated account executive	email with acknowledgement	on the second business day after despatch
PIO-N048	non-renewal	35 days	General Counsel	courier only	on the second business day after despatch
PIO-N049	breach	55 days	designated account executive	portal notice	on the second business day after despatch
PIO-N050	termination for cause	65 days	Contracts Manager	courier and email	on receipt
PIO-N051	renewal election	25 days	Contracts Manager	courier only	on the second business day after despatch
PIO-N052	termination for cause	65 days	Contracts Manager	courier and email	on receipt
PIO-N053	service credit claim	25 days	General Counsel	courier and email	on receipt
PIO-N054	price adjustment	85 days	Chief Operating Officer	email with acknowledgement	on despatch
PIO-N055	service credit claim	35 days	General Counsel	portal notice	on receipt
PIO-N056	renewal election	55 days	designated account executive	portal notice	on receipt
PIO-N057	change of control	30 days	Chief Operating Officer	email with acknowledgement	on receipt
PIO-N058	termination for cause	20 days	General Counsel	email with acknowledgement	on receipt
PIO-N059	price adjustment	5 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
PIO-N060	service credit claim	5 days	designated account executive	email with acknowledgement	on despatch

Pioneer notice type	Subject	Period	Addressee	Method	Deemed given
PIO-N061	breach	50 days	General Counsel	courier only	on the second business day after despatch
PIO-N062	renewal election	60 days	Contracts Manager	email with acknowledgement	on receipt
PIO-N063	non-renewal	20 days	Chief Operating Officer	email with acknowledgement	on receipt
PIO-N064	termination for cause	60 days	Contracts Manager	email with acknowledgement	on receipt
PIO-N065	change of control	65 days	designated account executive	courier and email	on the second business day after despatch
PIO-N066	termination for cause	40 days	Contracts Manager	portal notice	on the second business day after despatch
PIO-N067	non-renewal	20 days	Chief Operating Officer	courier and email	on receipt
PIO-N068	force majeure	25 days	designated account executive	courier and email	on the second business day after despatch
PIO-N069	assignment request	55 days	Chief Operating Officer	courier and email	on the second business day after despatch
PIO-N070	renewal election	30 days	Chief Operating Officer	courier and email	on the second business day after despatch
PIO-N071	force majeure	85 days	designated account executive	portal notice	on the second business day after despatch
PIO-N072	non-renewal	45 days	General Counsel	courier only	on despatch
PIO-N073	assignment request	40 days	Chief Operating Officer	courier only	on the second business day after despatch
PIO-N074	price adjustment	15 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
PIO-N075	assignment request	85 days	General Counsel	courier only	on receipt
PIO-N076	assignment request	85 days	designated account executive	courier only	on the second business day after despatch
PIO-N077	termination for cause	5 days	designated account executive	portal notice	on despatch
PIO-N078	termination for cause	65 days	designated account executive	courier only	on receipt

9. Term, termination and transition

Under Article 9 (Customer Obligations) of the Master Robotics-as-a-Service Agreement, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. In point of remedy, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Pioneer treats the obligation as a site-level matter across its 6 sites in Illinois, consistent with the Master Robotics-as-a-Service Agreement. Because Pioneer operates in freight cross-dock, the practical burden of this clause falls on its Illinois operation, and Article 13 (Licences) governs how it is measured.

Subject to Article 10 (Change Control), the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the mechanics, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Pioneer's 6 sites, since a freight cross-dock operator administers the Master Robotics-as-a-Service Agreement where the units work. Because Pioneer operates in freight cross-dock, the practical burden of this clause falls on its Illinois operation, and Article 19 (Confidentiality) governs how it is measured.

Nothing in Exhibit A entitles Pioneer to assume that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Procedurally, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Illinois is where Pioneer runs freight cross-dock operations across 6 sites, and the Master Robotics-as-a-Service

Agreement follows that footprint. Administration of this obligation for Pioneer sits with the account team rather than with central contracts, and Article 15 (Limitation of Liability) is where it is evidenced.

Pioneer and the Provider agree that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Per the amendment history, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Master Robotics-as-a-Service Agreement reaches each of Pioneer's 6 sites separately, which is how a freight cross-dock operator in Illinois administers it. The Pioneer file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

10. Assignment, notices and general

Article 13.5 of this instrument records a departure from the Provider's standard position: on expiry the Customer retains a perpetual, non-exclusive licence to the on-premises components then installed, for continued operation of Units already deployed. The provision was negotiated at signature and is not qualified elsewhere in the Master Robotics-as-a-Service Agreement; a reader reconciling this instrument against the Provider's standard terms should treat Article 13.5 as governing.

The parties have recorded in Schedule 3 that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the wording, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Pioneer runs 6 sites from Illinois in freight cross-dock, so the Master Robotics-as-a-Service Agreement is administered locally and this clause is applied per site. Nothing in the Pioneer negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

Pioneer has agreed, and the Provider has accepted, that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Deliberately so: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Pioneer treats the obligation as a site-level matter across its 6 sites in Illinois, consistent with the Master Robotics-as-a-Service Agreement. The Pioneer file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

Article 20 (Notices) of the Master Robotics-as-a-Service Agreement is to be construed so that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As a matter of construction, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In freight cross-dock the burden of this sits with operations, and Pioneer discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. The obligation as it applies to Pioneer was tightened at signature, and Article 19 (Confidentiality) carries the negotiated wording rather than the standard wording.

Except as Article 2 (Definitions) permits, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the mechanics, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Because Pioneer is a Illinois freight cross-dock business with 6 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. Pioneer has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.